

22STCV27156 22STCV27156

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-07-01

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Case Number: 22STCV27156 Hearing Date: July 1, 2026 Dept: 224

Jorge Flores v. X600 Motor Sport LLC

TENTATIVE RULING

The OSC was previously continued for Plaintiff to correct deficiencies. No revised default judgment package has been submitted since the April 30, 2026 OSC.

The OSC is CONTINUED one final time to October 1, 2026 at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit her updated default judgment package 10 days before the hearing.

The Court also sets an Order to Show Cause Re Sanctions Against Plaintiff's Counsel in the Amount of \$250 Pursuant to CRC 3.110(g)-(i) for Failure to Timely Obtain Entry of a Default Judgment for the same day and time. If a corrected default judgment package is not filed by the Court's deadline, counsel is subject to sanctions.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.

ANALYSIS

FACTS OF THE CASE:

The Complaint arises out of a "gas powered machine owned by X600 Motor Sport LLC that was not well maintained and should have been maintained properly" and the explosion of the machine, causing injuries to Plaintiff while he was working for Defendant.

PROOF OF SERVICE/DEFAULT:

default entered 08/13/2024,

PRINCIPAL REQUESTED: \$ 658,678.62

COSTS: \$ 1,708.86

TOTAL: \$ 660,387.48

ANALYSIS:

Plaintiff has submitted all the requisite forms. Proposed form of judgment is provided (JUD-100).

Proposed judgment is on a JUD-100 form.

585 Declaration has been provided. (Fagel Decl., Flores Decl.)

Doe Defendants have been dismissed.

Documentary evidence proving up the amounts has been provided. (See Compendium of Evidence)

Proof of proper address for service is provided.

PROBLEMS:

Costs are requested but Item No. 7 Memorandum of Costs is not filled out on the CIV-100.

There is still no copy of the Statement of Damages served on the Defendant. Exhibit C to the Compendium of Exhibits is a Proof of Service of the Statement of Damages. However, the actual Statement of Damages has still not been provided or filed.

The Court still does not find that the evidence presented justifies a five-times multiplier of special damages.

DISPOSITION:

The OSC was previously continued for Plaintiff to correct deficiencies. No revised default judgment package has been submitted since the April 30, 2026 OSC.

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Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.